THE VIDHI GAZETTE

October 2023 , Vol. VI

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VIDHISHALA

THE BHARATIYA NYAYA SANHITA BILL, 2023

THE BHARATIYA NAGARIK SURAKSHA SANHITA BILL, 2023

THE BHARATIYA SAKSHYA BILL, 2023

REFORMS IN CRIMINAL LAW: NEED OF THE HOUR

THE VIDHI GAZETTE

VIDHISHALA, a society registered under **The Rajasthan Societies Registration Act, of 1958,** has been a guiding light within the legal community since its establishment in July 2020. This remarkable organization is deeply committed to disseminating legal education, promoting awareness, and nurturing interdisciplinary discourse across various legal domains.

With a diverse membership that includes law students, legal practitioners, respected academicians, and esteemed judges, Vidhishala stands as a force dedicated to enlightening individuals about their legal rights and duties. This commitment to legal empowerment has earned Vidhishala a well-deserved place among the **"Top 100 Indian Law Blogs and Websites" by Feedspot in 2021.**

One of Vidhishala's significant accomplishments is the "**Rajasthan Law Festival**," a prestigious event held in collaboration with the Ranka Public Charitable Trust. This festival represents a landmark in the legal history of the country, underscoring Vidhishala's dedication to advancing the legal profession and fostering intellectual discourse.

Since its inception, Vidhishala has been on a mission to integrate legal aid and awareness initiatives, venturing into avenues such as legal aid, legal awareness, legal intervention, legal journalism, and legal activism. All of these initiatives are grounded in a profound socio-legal approach aimed at contributing positively to the development of society.

THE VIDHI GAZETTE

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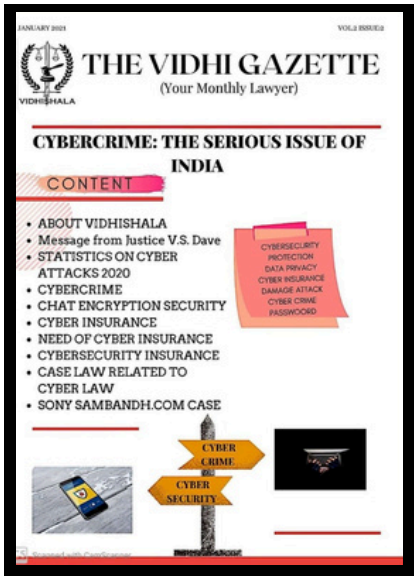
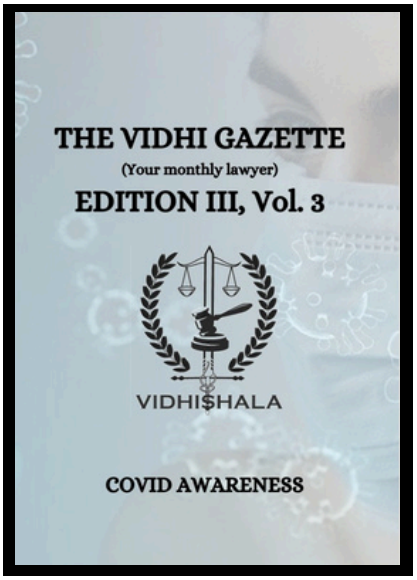
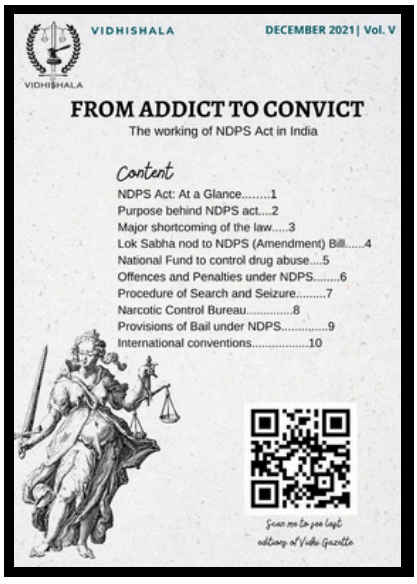
OUR PREVIOUS NEWSLETTERS







THE VIDHI GAZETTE

MESSAGE FROM HON'BLE MR. JUSTICE V.S. DAVE

FORMER JUDGE, RAJASTHAN HIGH COURT

JUSTICE V.S. DAVE

Former Judge Rajasthan High Court
Former Chairman Rajasthan Law Commission
Former Chairman State Consumer Redressal Commission
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FOREWORD

I take great pleasure and satisfaction in expressing my admiration for the commendable efforts put forth by Shri Kunal Sharma and his dedicated team Vidhishala in bringing forth this sixth edition of the Vidhi Gazette, titled "Reforms in Criminal Laws: The Need of the Hour." Having meticulously reviewed the manuscript, I wholeheartedly appreciate the diligent work they have undertaken.

From my perspective, it is evident that this work warrants further examination, particularly in the context of the established legal principles set forth by the Privy Council, the Federal Court, and the esteemed Hon'ble Supreme Court. Moreover, I find it necessary to address specific concerns, including the nomenclature of two bills, namely the "Bhartiya Nyaya Sanhinta Bill 2023" and the "Bhartiya Nyaya Suraksha Bill 2023." It appears that these names may not accurately reflect the intended purpose and contents of the proposed legislation.

The term "Nyaya" is commonly understood to mean justice, as per dictionary meaning and in everyday parlance. If one of these laws is explicitly labeled as a pursuit of justice, does this imply that the others are inherently unjust? Similarly, the second bill, "Bhartiya Nagrik Suraksha Sanhita," appears to connote a focus on public safety rather than the stipulated procedural laws.

In conclusion, while I laud the efforts and dedication put into this volume, I recommend a more thorough deliberation and consideration, encompassing a clause-by-clause examination within the proposed legislation, while taking into account the rich legal precedents set by the Privy Council, the Federal Court, and the Hon'ble Supreme Court. Furthermore, I suggest revisiting the nomenclature of the bills to ensure a more precise representation of their objectives and contents.

I wish Vidhishala all success in their future exercises.

(Vinod Shankar Dave)

THE VIDHI GAZETTE

MESSAGE FROM THE FOUNDER'S DESK

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MESSAGE

I am delighted to extend my heartfelt congratulations to the entire Newsletter Department on the successful launch of Edition VI, The Vidhi Gazette. The recent introduction of three Bills has sparked a wide range of reactions, highlighting important aspects of criminal law reform. These Bills, namely the **Bharatiya Nyaya Sanhita (replacing the Indian Penal Code), the Bharatiya Nagarik Suraksha Sanhita (replacing the Code of Criminal Procedure), and the Bharatiya Sakshya Bill (replacing the Indian Evidence Act), are ushering in significant changes to our criminal laws.**

Setting aside initial objections, it's clear that the nature and scope of these changes necessitate extensive study, discussion, and deliberation, possibly spanning months or even years. Amidst this ongoing discourse, a central challenge in the Indian context is how to effectively channel these debates to generate meaningful and relevant contributions. These Bills have the potential to shape the future landscape of criminal law, making it imperative to rigorously evaluate their sustainability, effectiveness, adherence to the rule of law, and their impact on the delivery of justice.

In our mission to provide valuable insights and promote meaningful discourse, the Newsletter Department plays a pivotal role. Their ability to distill intricate legal matters into accessible, engaging, and informative content is a testament to their dedication and expertise.

Your commitment to excellence is evident in every article, every word, and every page of "Edition VI, The Vidhi Gazette". It serves as a testament to the tireless efforts of our Newsletter Department in advancing our vision for informed legal discussions.

I am immensely proud of the collective achievements and the impact, members of the newsletter department continue to make through their contributions. My warmest congratulations, and let's look forward to many more editions that inspire, inform, and ignite discussions.

(Kunal Sharma)
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THE VIDHI GAZETTE

VIDHISHALA

October 2023 , Vol. VI

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INTRODUCTION

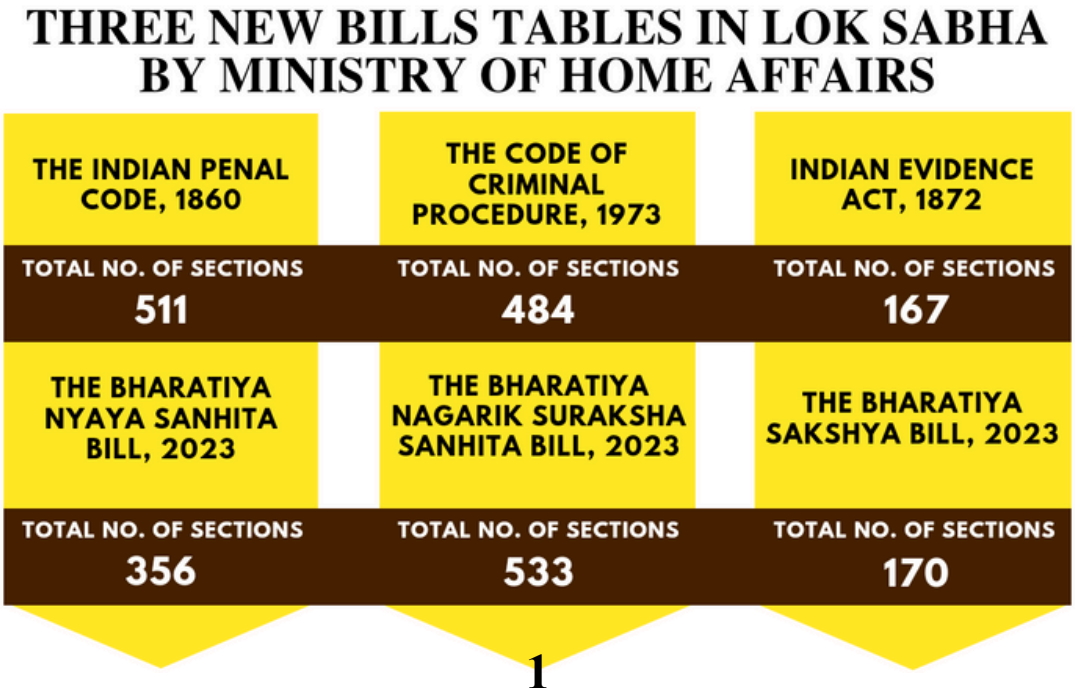
India was a diverse country with a multitude of local customs, traditions, and legal systems prior to British colonial rule. The Britishers recognized the need for a unified and comprehensive legal code that could replace the existing complex and often conflicting legal systems. The Criminal Law reflected the interests and priorities of the British colonial administration. It included provisions that were beneficial to colonial rulers and served their interests in maintaining law and order. Overall, the enactment of the criminal laws served both administrative and control purposes for the British colonial government in India. It provided a legal framework that was conducive to British governance and the maintenance of order in a diverse and complex colonial society.

In the field of law, there are two fundamental categories that are often used to classify legal principles and rules: substantive law and procedural law. These two categories work together to create a comprehensive legal system.

Substantive law, sometimes referred to as "real law," encompasses the actual laws and regulations that govern people's behaviour and define their rights and obligations. It defines what is legal or illegal, and it outlines the rights and duties of individuals and entities. For example- criminal law, contract law, property law, family law, and more.

Procedural law, on the other hand, governs the process by which legal cases are conducted. It outlines the rules, procedures, and methods that must be followed when pursuing a legal claim, defending against one, or resolving disputes.

In the present newsletter we will be covering The Bharatiya Nyaya Sanhita, 2023 referred as Substantive Law & The Bharatiya Sakshya Bill, 2023, The Bharatiya Nagarik Suraksha Sanhita, 2023 referred as Procedural law.



TIMELINE

2019- PM's Guidance for enactment of Laws	Prime Minister Shri Narendra Modi provided guidance that all laws enacted during the British colonial era, spanning various government departments, should be reviewed and adapted to align with contemporary times and the interests of Indian society. He personally reached out by letter to all judges of the Supreme Court, Chief Justices of all High Courts in the country, and all law universities across India.
2020- Letters sent for inputs	Letters were sent to all Members of Parliament, Chief Ministers, Governors, and Administrators of Union Territories to seek their input. The Ministry of Home Affairs constituted a committee under the leadership of Prof. (Dr.) Ranbir Singh, the former Vice Chancellor of the National Law University (NLU) in Delhi. This committee' main responsibility was to conduct a thorough review of the three crimina law bills.
February 2022- Recommendations	The committee successfully submitted its recommendations regarding amendments to the criminal law.
Comprehensive Consultations	Shri Shah highlighted the active participation of 18 States, 6 Union Territories, the Supreme Court, 16 High Courts, 5 Judicial Academies, 22 Law Universities, 142 Members of Parliament, around 270 Members of Legislative Assemblies, and the general public in providing suggestions for these new laws. He further noted that these discussions spanned a period of four years, during which he personally attended 158 meetings.

11th August 2023- Bills officially presented	The three Bills were officially presented in Parliament, and they have now been forwarded to the Standing Committee for thorough examination and review. Rajya Sabha Chairman Jagdeep Dhankar directed the referral of three proposed bills aimed at replacing British-era criminal laws to the Standing Committee on Home Affairs for thorough examination

The primary function of Parliament is to create laws, which are presented as Bills for approval by both Houses of Parliament and subsequently require the President's assent to become law. The process of lawmaking begins with the introduction of a Bill in either the Lok Sabha or the Rajya Sabha. Bills can be introduced by government ministers (Government Bills) or non-minister members (Private Member's Bills). A Bill goes through three readings in each House before being submitted to the President for assent:

1. **First Reading**: This involves the introduction of the Bill in the House. In some cases, it may involve seeking approval to introduce the Bill or presenting a Bill passed by the other House.

2. **Second Reading:** This stage has two parts:

- **First Stage:** Here, the principles and provisions of the Bill are discussed. Members can propose that the Bill be considered, referred to a committee, or circulated for public opinion.

-Second Stage: This involves a detailed clause-by-clause examination of the Bill, either in its original form or as reported by a committee.

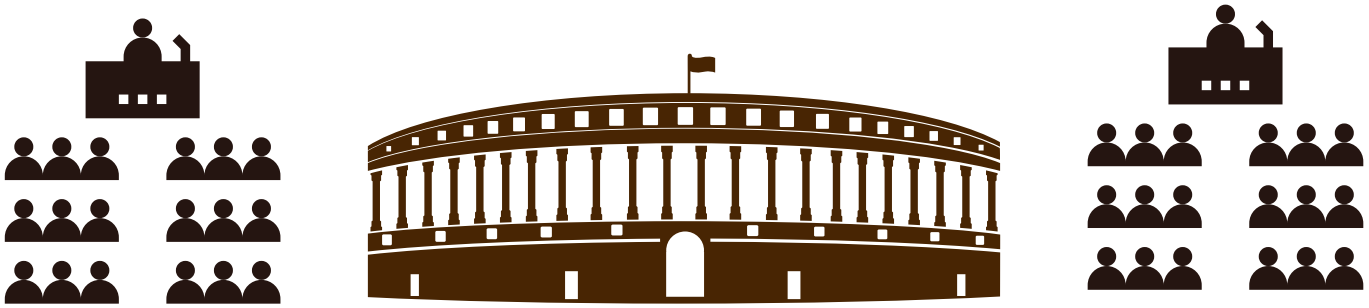
3. Third Reading: This is the final discussion and vote on the Bill, which can be passed in its original form or with amendments.

A similar procedure is followed in the Rajya Sabha for Bills introduced there.

After both Houses pass a Bill, it is sent to the President for assent. Once the President grants assent, the Bill becomes law. Additionally, certain Bills are referred to Departmentally Related Standing Committees, which examine and provide reports on them. These reports hold persuasive value and can lead to official amendments or the withdrawal and re-introduction of Bills to incorporate committee recommendations.

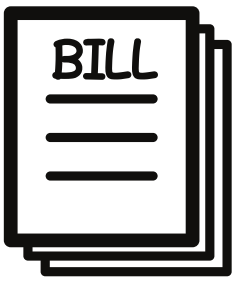
JOINT SITTING (Article 108)

Bills can also be referred to Select or Joint Committees for clause-by-clause consideration. However, Money Bills and Financial Bills with provisions related to Money Bills cannot be referred to Joint Committees.



There are restrictions on introducing certain categories of Bills in the Rajya Sabha, including Money Bills, which must originate in the Lok Sabha. Decisions on whether a Bill is a Money Bill are final and made by the Speaker.

ASSENT TO BILL (Article 111)



Finally, the President has the authority to assent to Bills, withhold assent, or return non-Money Bills for reconsideration with recommendations. Money Bills cannot be returned for reconsideration and must receive Presidential assent. Constitution Amendment Bills also require Presidential assent and, if necessary, ratification by State Legislatures.

THE BHARATIYA NYAYA SANHITA, 2023

OBJECTIVES

The objectives behind introducing new bills in a legislative body can very widely depending on the specific bill and the issues it seeks to address. However here are some common objectives behind the introduction of the Bhartiya Nyaya Sanhita, 2023 :-

1. For Removing Colonial Rule :

The primary objective in this context is to draft and pass bills that are instrumental in ending Colonial rule and achieving independence for the colonized nation. Drafting bills that outline the legal and constitutional framework for self - governance and independence.

Credit- Hulton Archive, Getty Images

- Asserting national sovereignty and defining the powers and rights of the newly formed Government.
- Establishing fundamental principles of governance and human rights.
- Repealing aur amending colonial era laws that infringe on the rights and freedoms of the population.
- Building consensus and support among the population and international community for the bills that lead to Independence.

2. For Making it a Complete Structure by Changing its Structure into Simple Precise Manner :

The objective here is to reform and modernize existing legislation, making it more comprehensive, easily understandable and efficient. Reviewing and consolidating existing laws and regulations to eliminate redundancies and inconsistencies by consultation with Legal experts, stakeholders and the public to gather input and feedback for effective reform.

- Simplifying legal language and removing ambiguity to enhance clarity and accessibility.
- Updating outdated provisions to align with current societal norms and needs. Incorporating modern legal principals and best practices.
- Enhancing the organization and structure of the legal framework to improve functionality.

3. For Adopting Modernization and Digitization :

The objective is to modernize legal processes and systems by embracing digital technology to improve efficiency, accessibility, and transparency. It can be only achieved by establishing legal frameworks for electronic governance and data protection.

Credit - BuxByte

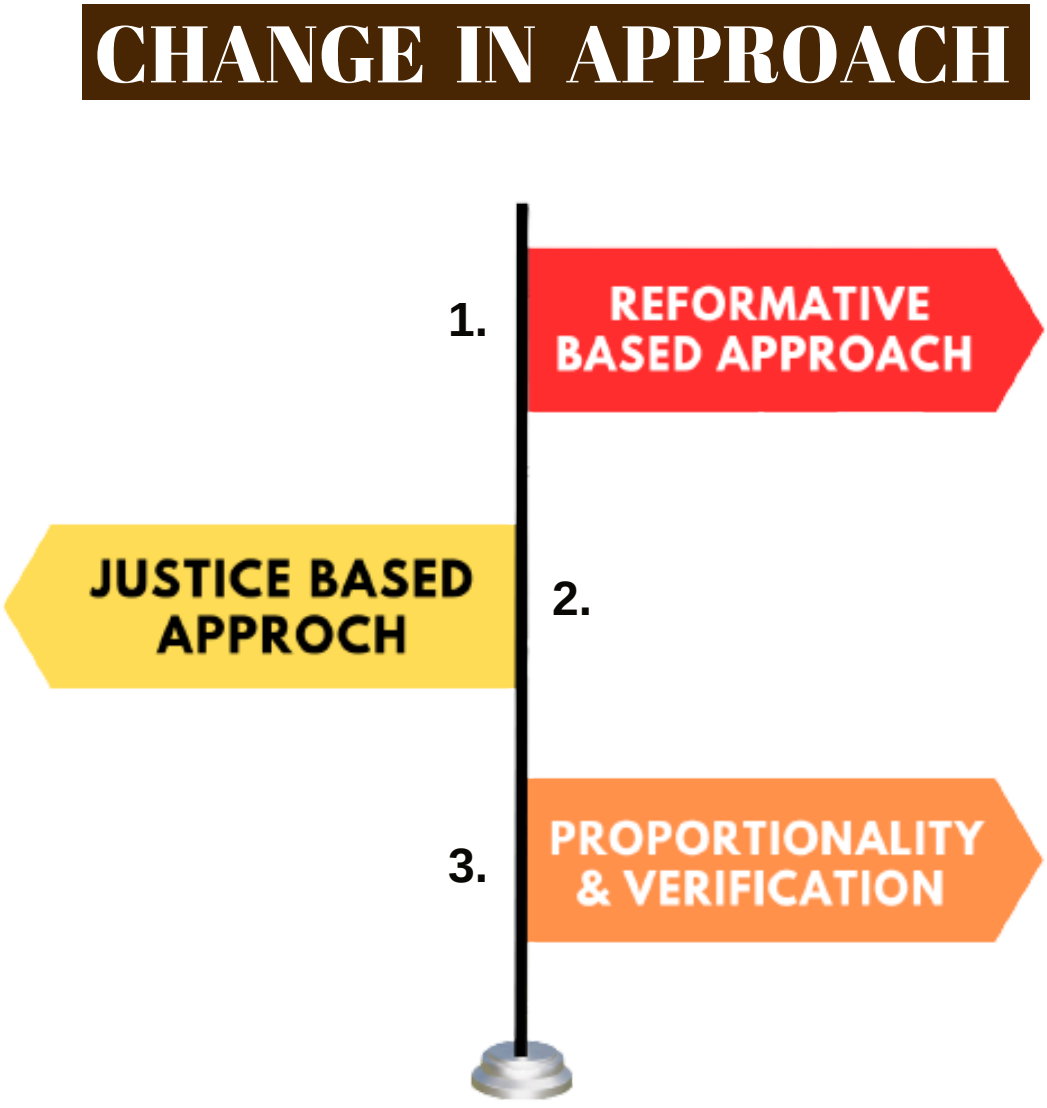
- Creating laws to govern cybersecurity, data privacy and digital rights.
- Encouraging the use of electronic records in legal proceedings and administration.

- Promoting the development of digital infrastructure and technology adoption in the legal sector.
- Ensuring that new laws are adaptive to emerging technological trends and advancements.

4. For Taking into Consideration the things which were missing in existing Act:

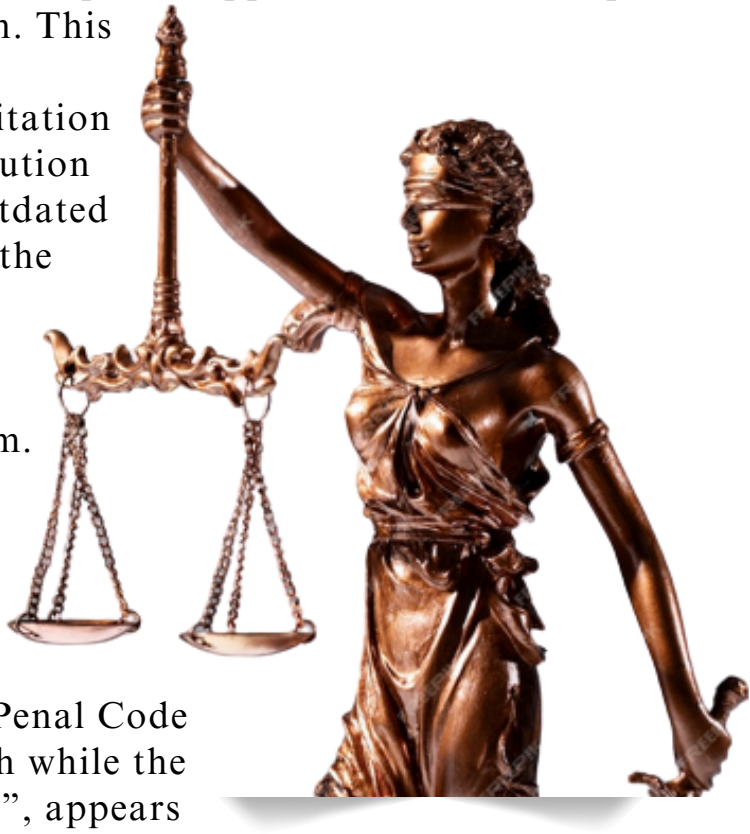
The objective is to address gaps, shortcomings, or inadequacies in existing legislation to better serve the needs of society by identifying specific issues or areas where the existing act falls short.

- Conducting comprehensive reviews, research, and consultations to understand the gaps.
- Drafting bills to fill these gaps and rectify deficiencies.
- Incorporating new provisions, definitions, or regulations to address contemporary challenges.
- Ensuring that the new legislation is in harmony with existing laws and does not create conflicts.
- Prioritising the needs and concerns of affected individuals, communities, or industries when making amendments.



1. **REFORMATIVE - BASED APPROACH :**

If the legislature is adopting a reformative-based approach, the objective of the legislation could be to reform and modernize the existing legal framework. To gain a better understanding of a reformative-based approach, it is essential to first familiarize oneself with the underlying principles and concepts of the reformative theory of punishment. The reformative theory of punishment, also known as the rehabilitative theory of punishment, is a philosophical approach to the concept of punishment within the criminal justice system. This theory emphasizes the idea that the primary purpose of punishment should be the rehabilitation and reform of the offender rather than retribution or deterrence. This might involve revising outdated laws, removing inconsistencies, and aligning the legal system with contemporary social, economic, and technological developments. The focus would be on improving the overall efficiency and effectiveness of the legal system.



2. **JUSTICE - BASED APPROACH :**

A justice-based approach would emphasize the principles of fairness, equity and access to justice. In the light of the existing Indian Penal Code which is inclined towards a punitive approach while the proposed bill “Bhartiya Nyaya Sanhita, 2023”, appears to place a greater emphasis on delivering justice to the people, as indicated by its name. The Present bill aims to enhance the protection of fundamental rights and freedoms, ensure due process, and promote equality before the law.

3. **PROPORTIONALITY & VERIFICATION :**

A proportionality and verification-based approach would involve carefully assessing the potential impacts and consequences of the legislation. This includes ensuring that the proposed laws are proportionate to the intended objectives and that they do not lead to unintended negative consequences. Verification processes may be put in place to ensure that the legislation is effectively implemented and achieving its intended outcomes.

> Injustice anywhere is a Threat to Justice Everywhere

PARAMETERS

DETERRENCE AND CRIME REDUCTION :

An important indicator of the effectiveness of the BNS (present bill) is its ability to deter criminal behavior. If the presence of criminal laws and the associated penalties serve as a deterrent, discouraging individuals from engaging in criminal activities, it can be considered effective. This is particularly evident in the bill's provisions, which have increased penalties for serious offences, potentially influencing potential wrongdoers to think twice before committing such crimes.

VICTIM PROTECTION AND REHABILITATION :

Ensure that the legislation not only focuses on punishing offenders but also incorporates measures for safeguarding, compensating, and rehabilitating victims, especially in instances involving violence and exploitation. In the current BNS (present bill), we can observe specific sections, such as Clause 65, 70 & 122, that address these aspects comprehensively.

CLARITY & PRECISION :

It is crucial to guarantee that the language used in the BNS is unambiguous and exact, minimizing the potential for confusion. Ambiguous legal clauses can result in varying interpretations. In the current bill, there are instances where clarity is lacking, such as the absence of a definition for "Community Service" in the context of the sixth type of punishment .

In conclusion, it's important to recognize that there is always room for improvement in any legislative bill. When a bill is presented before a standing committee, there is the opportunity for thorough review, and the committee may propose changes and amendments to enhance its effectiveness and clarity. This process underscores the dynamic and responsive nature of the legislative system, aiming to ensure that the final law serves the best interests of society.

LOOPHOLES COVERED OR NOT

REMOVAL OF SECTION 377

The primary drawback in the proposed Bill aimed at replacing the IPC is the complete removal of Section 377 of the IPC, without establishing alternative mechanisms for addressing sexual offences involving both humans and animals. Undoubtedly, Section 377 has its origins in colonial-era moral values that deemed same-sex relationships as criminal. However, the absence of any legislation to address sexual crimes against animals creates a vacuum, potentially leading to an increase in such offences. Eliminating the colonial-era statute could have had a significant impact if the proposed Bill had introduced a gender-neutral rape law and included a separate provision for addressing sexual offenses against animals, recognizing them as victims of such crimes.

MARITAL RAPE IS NOT EXPLICITLY ADDRESSED IN THE BNS

There is no provision for marital rape in the Bharatiya Nyaya Sanhita of 2023. Both Exception 2 in Clause 63 (rape) of the Bill and Exception 2 in Section 375 of the IPC essentially maintain the same principle sexual intercourse by a man with his own wife is not considered rape, with only a difference in the specified age limit.

NO PROVISION FOR ATTEMPT TO SUICIDE

Nevertheless, the BNS Bill of 2023 does not include a specific provision regarding attempted suicide, unlike Section 309 of the IPC. The new bill lacks such a provision. However, the new bill does introduce Section 224, which criminalizes an attempt to commit suicide with the intent to compel or restrain the exercise of lawful power.

Navtej Singh Johar & Ors. Vs. Union of India AIR 2018

The Supreme Court decriminalized consensual unnatural sexual intercourse (Section 377).

LEGAL SAFEGUARD FOR VULNERABLE GROUPS

The Bharatiya Nyaya Sanhita (BNS) brings in stricter and more extensive provisions for addressing offences against women and children, dedicating a whole chapter to these matters. In contrast, the Indian Penal Code (IPC) lumps such offences under a chapter that deals with crimes "affecting the human body." Nevertheless, the language and tone of potential revisions within the BNS appear to adhere to a traditional gender binary perspective, prioritising the preservation of women's honour rather than advancing gender equality.

"We have to take a close look at how we actually apply the new law and make sure it's fair. We need to make sure it doesn't support harmful ideas about how different genders should behave or unfair judgments, just like important court rulings in the past have demonstrated." How we make and understand this law is really important for its success."The provisions encompassed under BNS are commendable, nonetheless, existing loopholes aren't sufficiently addressed and necessitate further exploration.

> “The protection of life and personal liberty is sacrosanct.”
> – *Justice D. Y. Chandrachud*

WHAT CHANGES - THEN VS. NOW

The Indian Penal Code of 1860 initially comprised 511 Sections, but the recent Bhartiya Nyaya Sanhita, 2023, has reduced the total to 356 Clauses. Among these, there are several crucial Clauses that find frequent application in everyday life and play a significant role in courtroom proceedings.

INDIAN PENAL CODE, 1860	BHARTIYA NYAYA SANHITA, 2023

SECTION	MARGINAL NOTE & DESCRIPTION	CLAUSE	MARGINAL NOTE & DESCRIPTION
53	Punishments	4	Punishments - 6th Type of Punishment added under clause (f) i.e. Community Services
141	Unlawful Assembly	187	Unlawful Assembly -Clause 2 to Clause 9 added
300	Murder	99	Murder
326A 326B	Voluntarily Causing Grievous Hurt by use of Acid, etc Voluntarily throwing or attempting to throw acid	122 & 122(2)	Voluntarily Causing Grievous Hurt by use of Acid, etc122 (1) & Explanation (2) of 122(2) permanent vegetative state added
354A	Sexual Harassment & Punishment for Sexual Harassment	74	Sexual Harassment & Punishment for Sexual Harassment
375 376	Rape Punishment Of Rape	63 64	Rape Punishment of Rape
376D	Gang Rape	70	Gang Rape 70(2) Added - Rape with women under 18 years of age .

378	Theft	301	Theft
441 442	Criminal Trespass House Trespass	327	Criminal Trespass & House Trespass Amount of fine exceeded to 5000/-
498A	Husband or relative of Husband of Women subjecting her to cruelty	84	Husband or relative of Husband of Women subjecting her to cruelty
499	Defamation	354	Defamation Word - Any manner added
503	Criminal Intimidation	349	Criminal Intimidation Words- By any means
510	Misconduct in Public by a Drunken Person	353	Misconduct in Public by a Drunken Person 1000 Rs Fine & Community Service as one of the Punishment added.

NEW SECTIONS INSERTED IN BNS, 2023

There are a total of 14 new Clauses introduced in the BNS, 2023. Among these, we will provide concise descriptions for the Clauses that are particularly important and relevant to everyday life. Here is the list of Clauses:-

SECTION & MARGINAL NOTE	DESCRIPTION	PUNISHMENT	EXPLANATION
48- Abetment outside India for offence in India	An individual is deemed to abet an offence under this Sanhita if they aid, from a location outside India, in the commission of an act in India that would be considered an offence if carried out within India. Illustration:- A, in country X, instigates B, to commit a murder in India, A is guilty of abetting murder		
69- Sexual Intercourse by deceitful means or false promise to marry	Anyone who engages in sexual intercourse with a woman by using deceitful means or false promises of marriage, without any intention of actually marrying her. This does not constitute rape.	Such person shall be subject to **imprisonment of either description for a period of up to ten years and may also be fined.**	Explanation.—— *"deceitful means"* shall include the false promise of employment or promotion, inducement or marrying after suppressing identity.

70(2)- Gang rape on women under the age of 18	In the event that a group of individuals, acting together with a common intention, sexually assaults a woman below the age of eighteen, each member of the group will be considered as having committed the crime of rape.	Each member of that group shall be p**unished with imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, and with fine, or with death.**	
101(2)- Punishment for Murder (Mob Lynching)	If a group of five or more individuals collaboratively commits murder based on factors like race, caste, community, gender, place of birth, language, personal beliefs, or any similar grounds, each member of that group said to commit an offence of mob lynching.	Each member of that group shall be punished **with death or with imprisonment for life or imprisonment for a term which shall not be less than seven years, and shall also be liable to fine.**	
109- Organised Crime	109(1) Any ongoing unlawful activity carried out by individuals or groups with the intention of gaining material benefits	Whoever, attempts to commit or commits an offence of organised crime shall,—	To access the complete explanations provided in this section, one can refer to the bill.

	including financial gains, through violence, threats, coercion, or other unlawful means falls under organised crime. There are total 7 clauses in this particular section and clause 3 to clause 7 can be understood under the followings heads: 109(3)Conspiracy and Assistance, 109(4)Membership in Organized Crime Syndicate, 109(5) Harbouring or Concealing Offenders, 109(6) Possession of Property from Organized Crime, 109(7) Unexplained Property	(i) if such offence has resulted in the death of any person, be **punishable with death or imprisonment for life without the benefit of parole, and shall also be liable to fine which shall not be less than rupees ten lakhs;** **(**ii) in any other case, be **punishable with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life, and shall also be liable to fine which shall not be less than rupees five lakhs.**	
111- Offence of terrorist act	111(1) A person commits a terrorist act if they engage in certain actions with	Whoever, attempts to commit or commits an offence	"Terrorist" refers to anyone involved in activities related to

	the intent to threaten India's unity, integrity, and security, intimidate the public, disturb public order, or disrupt essential services. These actions include the use of explosives, weapons, or harmful substances, causing harm or endangering lives, damaging property, interfering with critical infrastructure, or attempting to influence the government through intimidation. There are total 6 clauses in this particular section and clause 3 to clause 6 can be understood under the followings heads:		**hazardous substances, terrorist acts, or support for terrorism.** **- "Proceeds of terrorism" has the same meaning as defined in the Unlawful Activities (Prevention) Act, 1967.** **- "Terrorist organization, association, or a group of persons" encompasses entities involved in terrorism, preparing for terrorism, promoting terrorism, or aiding terrorist acts, including those listed in the First Schedule of the Unlawful Activities (Prevention) Act, 1967.**

	There are total 6 clauses in this particular section and clause 3 to clause 6 can be understood under the followings heads: 111(3)Conspiracy and Assistance, 111(4)Membership in a Terrorist Organization, 111(5)Harbouring or Concealing Offenders, 111(6)Possession of Property from Terrorism	of terrorist act shall,— (i) if such offence has resulted in the death of any person, be **punishable with death or imprisonment for life without the benefit of parole, and shall also be liable to fine which shall not be less than rupees ten lakhs;** (ii) in any other case, **be punishable with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life, and shall also be liable to fine which shall not be less than rupees five lakhs.**	
302- Snatching	Theft is considered "snatching" when the offender forcefully and swiftly seizes or takes	Whoever commits snatching, shall be **punished with imprisonment of either**	

	or takes movable property from a person or their possession during the commission of the theft.	**description for a term which may extend to three years, and shall also be liable to fine.**	

To access the complete new clauses added under "BNS," one can refer to the bill.

PROS & CONS

The Bhartiya Nyaya Sanhita, comes with both advantages and disadvantages. Some pros & cons are discussed below :-

PROS

CLARITY :
By offering a comprehensive set of codified laws covering a broad spectrum of offences, it furnishes law enforcement agencies with explicit guidance regarding the corresponding penalties for each criminal act. Offences Like Organised Crime & Terrorism insertion of Complete Separate Chapters are one of the evident things .

DETERRENCE:
The bill's imposition of severe penalties for offences serves as a deterrent, dissuading potential criminals and contributing to the preservation of law and order. Notably, the bill includes measures such as the introduction of the death penalty under section 101(2) for mob lynching, 70(2) gang rape of minors, 109(2) (i) for organised crime and under section 111(2) for Terrorism & lastly there are also other provisions in which heightened punishments are given as means to reinforce deterrence.

DETAILED DESCRIPTION:
The BNS offers comprehensive depictions and classifications of offences, facilitating precise interpretation and enforcement of the law. The incorporation of Clause 48, dealing with abetment outside India for offences committed within India, Clause 302 encompassing chain snatching, and Clause 110 addressing terrorist-related offences, are notable examples within the bill.

COGNITION:
The BNS plays a pivotal role in enhancing social awareness regarding actions that are deemed unlawful and subject to legal consequences. This serves to educate citizens about their legal responsibilities and the potential repercussions of transgressions.

As we all know, everything can't be changed in a single stroke, so with the passage of time, the Hon'ble Supreme Court and High Courts have thoroughly reviewed and, when necessary, modified, replaced, or abolished provisions within existing laws. It is not feasible to completely overhaul these laws all at once. Consequently, the matter has been duly forwarded to a standing committee for comprehensive deliberation. We appreciate the government's dedication to a rigorous scrutiny of all facets of criminal legislation, with the aim of ensuring their alignment with the contemporary requirements of society

CONS

GENDER BIAS:

Some provisions in the BNS have been criticised for upholding gender biases. For example, offences related to sexuality and marriage often favour a male-centric perspective . Right to privacy of men is also not taken into consideration under BNS, one of the biggest critiques of Bill. Like when we look at Clause 76 for Voyeurism & Clause 77 For Stalking, it is clearly evident that these sections don't talk anything about the privacy of male. No concerns are shown towards their privacy. It's purely covering & aiming towards engaging in private acts of Women.

INADEQUATE VICTIM SUPPORT :

The IPC focuses mainly on punishing the offender and could be more comprehensive in providing support for victims .There are only few clauses out of 356 clauses where victim compensation are seen i.e. u/c 65 Punishment for rape in certain cases , u/c 70 for Gang rape & u/c 122 for Voluntarily causing hurt or grievous hurt by use of acid, etc

AMBIGUITY:

The new bill does not explicitly mention whether criticism of the government, without inciting violence or illegal activities, constitutes an offence, it may create ambiguity or uncertainty in how such actions would be treated under section 150 of BNS. In many democratic societies, freedom of speech is protected as a fundamental right, and citizens have the right to express their opinions, including criticism of the government, as long as it does not incite violence or pose a direct threat to national security. Critics have raised concerns about the bill's lack of explicit instructions regarding the enforcement of specific provisions concerning sexual offences, particularly the one pertaining to false promises of marriage.

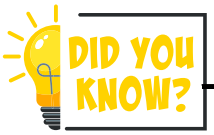
COMMUNITY SERVICE NOT CONFINED:

The “Bharatiya Nyaya Sanhita" (BNS) does not provide a clear and specific definition of "community service" within its legal framework, it can indeed create ambiguity and leave a significant amount of discretion to interpreters, such as judges, lawyers, and legal authorities. This ambiguity may arise for various reasons, including the evolving nature of legal systems and societal expectations.

POLICE BRUTALITY AND CUSTODIAL VIOLENCE:

The BNS has faced criticism for its perceived insufficient measures in addressing the problem of police brutality and custodial violence, potentially perpetuating human rights violations and eroding trust in the integrity of the criminal justice system.
For example, one can refer Clause 117 & 118 for witnessing the wide range of Free hand powers given to police officers.

The proposed Bharatiya Nyaya Sanhita Bill, 2023, falls short of expectations as it primarily makes superficial changes. While removing references to the British 'crown' and 'emperor' is necessary, it's merely cosmetic. Dropping certain outdated provisions from the penal code is more of a housekeeping exercise as courts have already invalidated them. Unfortunately, the colonial aspects and underlying assumptions about Indians persist in the new law. The BNS retains the harsh colonial penal policy and even increases punishments, including introducing the death penalty for some offences.



LEGAL MAXIMS

Actus non facit reum nisi mens sit rea - An act does not make a man guilty, unless there be guilty intention.

Audi alteram partem - Let the other side be heard as well.

Volenti non fit injuria - No injury can be done to a willing person.

Ratio decidendi -The reason for the decision.

Obiter dictum -That which is said in passing

THE BHARATIYA SAKSHYA BILL, 2023

OBJECTIVES

1. **HISTORICAL LEGACY:**

The Indian Evidence Act of 1872, a product of its colonial past, has long been the foundation of India's legal system. However, its colonial undertones have prompted the need for reform to align with contemporary values and principles.

2. REFORMING THE LEGAL LANDSCAPE:

The introduction of the Bharatiya Sakshya Bill, 2023 is not solely motivated by the desire to remove colonial vestiges. It is a response to the evolving needs and expectations of a modern Indian democracy.

3. TECHNOLOGICAL ADVANCEMENTS:

India's legal system must adapt to the rapid advancements in technology. The introduction of advanced technologies has necessitated legal reforms to address new challenges and opportunities in the digital age.

4. REBALANCING THE CRIMINAL JUSTICE SYSTEM:

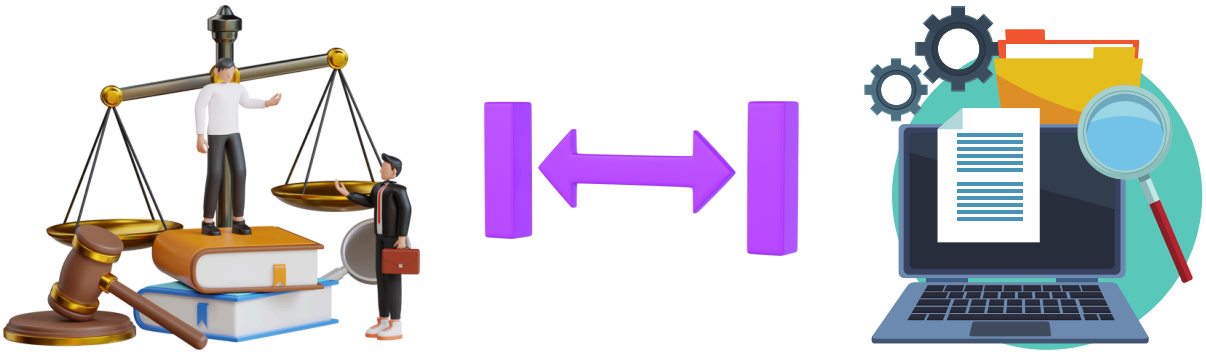
The new bills, including the Bharatiya Sakshya Bill, aim to rebalance the criminal justice system. They seek to strike a more equitable balance between conventional legal norms and the contemporary realities shaped by technology.

5. REFLECTING SOCIETAL AND TECHNOLOGICAL PROGRESS:

As India has progressed over seven decades since its independence, there is a growing consensus that the legal system must evolve to align with modern societal demands and technological advancements.

6. ADDRESSING TECHNOLOGICAL GAPS:

The existing legal framework has not kept pace with the rapid technological changes India has witnessed. The Bharatiya Sakshya Bill intends to bridge this gap by introducing measures that align legal rules with current technology realities.



7. CRUCIAL MEASURES:

The proposed Bharatiya Sakshya Bill incorporates essential provisions to bridge the divide between traditional legal norms and the demands of contemporary technology. These measures are aimed at fostering a legal environment that is both relevant and effective in the digital age.

CHANGE IN APPROACH

Sakshya means "evidence."

As opposed to the previous 167 sections, the revised Bill has 170 clauses. It calls for removal of five sections and the amendment of 23 sections.

The Sakshya Bill amends the Evidence Acts earlier provisions in at least two significant and desirable ways.

It increases the use of secondary evidence and simplifies the regulations for electronic evidence.

ARE THE LOOPHOLES COVERED

Herein lies a delineation of the specific loopholes that are evident in this context, While the provisions incorporated within the BSB (Bharatiya Sakshya Bill) are praiseworthy, it is imperative to acknowledge that certain prevailing gaps remain inadequately rectified and warrant deeper examination.

HAVE ALL THE POTENTIAL VULNERABILITIES AND GAPS BEEN THOROUGHLY MITIGATED?

While the Evidence Act has seen only a few significant amendments, the ambiguous language and misplaced provisions within the Bhartiya Sakshya Bill raise more questions than they provide solutions.

In Clause 165 of the Bill, there's an issue with the placement of a provision. Subsection (3) doesn't fit with its current context about interpreters and should instead be placed with Subsections (1) or (2), where the broader power of the court to compel document production is discussed. This change is suggested to address privileged documents involving ministers and the President of India.

The implications of poor drafting are magnified by the new confessions provision in Clause 23 of the Bill. Previously, the Evidence Act's Section 25 prohibited the use of confessions given to the police, whether during custody or not, in court proceedings. This exclusion had a well-recognized policy behind it, articulated by Sir James Stephen, the Act's author. The rationale was to deter police from resorting to coercion to extract confessions.

HAVE ALL THE POTENTIAL VULNERABILITIES AND GAPS BEEN THOROUGHLY MITIGATED?

Consistent with this logic, Section 26 of the Evidence Act established that confessions made while under arrest to individuals other than police officers would be admissible only if they were made in the presence of a magistrate.

The idea was that if evidence obtained by the police couldn't be used in court, there would be no incentive for them to employ coercive tactics to obtain confessions.

Although the previously mentioned restrictions were in place, Section 27 of the Act, following these clauses, permitted the admission of specific portions of confessions called "discovery statements" in court if relevant items (such as the offender's weapon) were subsequently found. This provision has faced considerable criticism for potentially reducing the initial deterrent effect against the use of coercion to obtain confessions.

TRANSFORMATION OF LEGAL SYSTEM

DIGITILIZATION

The legal system is being transformed by technology in the age of digital transformation, along with many other industries. This tendency is reflected in the new legislation that Union Minister Amit Shah has tabled, which includes measures addressing digital offenses and the use of digital evidence.

Even though the Indian Evidence Act of 1872 already permits this, the proposed addition of Clause 61 in the Bill offers much-needed clarification, particularly when read during with the proposed definition of "document," which among other things includes emails, computer logs, and messages as examples of the same. Through the planned and synchronized engagement of the entire Government, digitization in India aims to transform the country into a knowledge economy and bring about excellent governance for citizens

The term "digitalization" refers to the socioeconomic changes brought about by the widespread use of digital technologies for the creation, processing, and distribution of information. The Bharatiya Sakshya Bill, 2023 clearly allows for the inclusion of electronic documents as evidence, supporting the drive for a "Digital India."

DIGITAL EVIDENCE

The new bills acknowledge the importance of digital evidence, such as emails, text messages, and social media posts. For as long as the digital evidence satisfies certain requirements, provisions have been developed to assure its admissibility in court.

It's essential to guarantee the reliability of digital evidence. The laws specify processes, including the use of digital signatures and secure protocols, for validating digital evidence.

Digital evidence must be properly preserved because it might be unstable. In order to maintain the integrity of digital evidence throughout the legal process, laws prescribe criteria for preservation.

That digital evidence is so complicated, the regulations permit expert witnesses to clarify technical details so that jurors and judges can make well-informed judgments.

IMPACTS

The new rules reflect the reality of the twenty-first century, upgrading India's legal system by acknowledging digital offenses and evidence.

01

Using digital evidence helps speed up courtroom processes by cutting down on delays

02

Despite being progressive, the integration of digital technology is not without its difficulties. These difficulties include concerns about privacy and security along with the potential for improper use of digital evidence

03

By regulating digital offenses, the rules ensure that citizens are able to engage in online activity without worrying about harassment or fraud

WHAT CHANGES- THEN VS NOW

The recently enacted Bharatiya Sakshya Bill, 2023 comprises a total of 167 clauses. Within this legislative framework, 23 sections, originally sourced from the Evidence Act, have undergone modifications. Additionally, one entirely novel section has been introduced, while five sections have been removed.

SECTION	INDIAN EVIDENCE ACT, 1872	CLAUSE	THE BHARATIYA SAKSHYA BILL, 2023
3	Interpretation Clause	2	Definitions
4	"May presume"	2(i)	"May presume"
6	Relevancy of facts forming part of same transaction	4	Relevancy of facts forming part of same transaction
22	When oral admissions as to contents of documents are relevant	20	When oral admissions as to contents of documents are relevant
24	Confession caused by inducement, threat or promise, when irrelevant in criminal proceeding	22	Confession caused by inducement, threat, coercion or promise, when irrelevant in criminal proceeding.
26	Confession by accused while in custody of Police not to be proved against him	23	Confession to police officer

31	Admissions not conclusive proof, but may estop	25	Admissions not conclusive proof, but may estop
32	Cases in which statement of relevant fact by person who is dead or cannot be found, etc., is relevant	26	Cases in which statement of facts in issue or relevant fact by person who is dead or cannot be found, etc., is relevant.
37	Relevancy of statement as to fact of public nature contained in certain Acts or notifications	31	Relevancy of statement as to fact of public nature contained in certain Acts or notifications
38	Relevancy of statements as to any law contained in law-books.	32	Relevancy of statements as to any law contained in law books including electronic or digital form.
39	What evidence to be given when statement forms part of a conversation, document, electronic record, book or series of letters or pape	33	What evidence to be given when statement forms part of a conversation, document, electronic record, book or series of letters or pape
44	Fraud or collusion in obtaining judgement, or incompetency of Court, may be proved	38	Fraud or collusion in obtaining judgement, or incompetency of Court, may be proved
45	Opinions of experts	39	Opinions of experts
50	Opinion on relationship, when relevant.	44	Opinion on relationship, when relevant.

52	In civil cases character to prove conduct imputed, irrelevant	46	In civil cases character to prove conduct imputed, irrelevant
55	Character as affecting damages	50	Character as affecting damages
57	Facts of which Court must take judicial notice	52	Facts of which Court shall take judicial notice
58	Facts admitted need not be proved	53	Facts admitted need not be proved
59	Proof of facts by oral evidence	54	Proof of facts by oral evidence
60	Oral evidence must be direct	55	Oral evidence must be direct
61	Proof of contents of documents	56	Proof of contents of documents
62	Primary evidence	57	Primary evidence
63	Secondary evidence	58	Secondary evidence
64	Proof of documents by primary evidence	59	Proof of documents by primary evidence
65	Cases in which secondary evidence relating to documents may be given	60	Cases in which secondary evidence relating to documents may be given

68	Proof of execution of document required by law to be attested	67	Proof of execution of document required by law to be attested
69	Proof where no attesting witness found	68	Proof where no attesting witness found
73	Comparison of signature, writing or seal with others admitted or proved	74	Comparison of signature, writing or seal with others admitted or proved
73A	Proof as to verification of digital signature.	73	Proof as to verification of digital signature.
74 75	Public documents Private Document	75	Public documents & Private Document
77	Proof of documents by production of certified copies	76	Proof of documents by production of certified copies
78	Proof of other official documents	77	Proof of other official documents
80	Presumption as to documents produced as record of evidence	79	Presumption as to documents produced as record of evidence, etc
90	Presumption as to documents thirty years old	92	Presumption as to documents thirty years old
90A	Presumption as to electronic records five years old	93	Presumption as to electronic records five years old

92	Exclusion of evidence of oral agreement	95	Exclusion of evidence of oral agreement
93	Exclusion of evidence to explain or amend ambiguous document	96	Exclusion of evidence to explain or amend ambiguous document
118	Who may testify	124	Who may testify
122	Communications during marriage	128	Communications during marriage
124	Official communications	130	Official communications
162	Production of documents.	165	Production of documents.
163	Giving, as evidence, of document called for and produced on notice.	167	Giving, as evidence, of document called for and produced on notice.
165	Judge's power to put questions or order production	168	Judge's power to put questions or order production
65A	Special provisions as to evidence relating to electronic record.	62	Special provisions as to evidence relating to electronic record.
65B	Admissibility of electronic records	63	Admissibility of electronic records

PROS & CONS

PROS

IT IS MORE INDIAN-CENTRIC

It is important to notice that all references to the Crown, the British Queen, the General Gazette, etc. have been changed by references to "India," "President," the Official Gazette, etc.

UNDERSTANDING OF MENTAL DISORDERS

The phrase "person suffering from mental illnesses" has been used in the bill . In fact, society has advanced because of this. It has been a taboo subject in India for a very long time.(Clause 124)

EXPLAIN THE ACCEPTABILITY OF ELECTRONIC EVIDENCE

This was not possible under the previous law. The Bill further broadens the definition of secondary evidence by encompassing electronic evidence and any copies (soft copies) made of it.

GLOBAL IDENTITY

Removing the British rules will allow India to demonstrate with greater clarity its sovereignty.

Breaking from British rules enhances India's global standing, reaffirming its status as a sovereign and independent nation on the international stage.

POINTS TO REMEMBER

Secondary evidence includes:-

(a) certified copy of a court's judgement

(b) oral account by any person of a document who has seen it

(c) copies prepared or compared with originals

The Hon'ble Supreme Court has laid down that a party, who is desirous of proving electronic evidence but does not have access to the device from which, the document was produced, is not required to produce and prove the certificate under Section 65-B of the Evidence Act. Shafi Mohd. Vs. State of Himachal Pradesh, SLP (Cri) No. 3202/2017, decided on 30.01.2018

CONS

DIGITAL EVIDENCE RELIABILITY:

With the development of Artificial Intelligence, nothing seems to be impossible in the modern world. Digital records, such as video recordings, images, or even documents, can be easily edited. Therefore, the evidence provided by digital means may not always be entirely accurate.

INFORMATION TECHNOLOGY SKILLS GAP:

Many legal professionals lack Information Technology skills India has gone digital, but a sizable portion of the country still lacks adequate technical infrastructure. Judges and attorneys from the past may not have a strong comprehension of digital records or evidence. This could possibly contain errors.

COERCION RISKS:

Clause 23 of the BSB permits confessions provided to a police officer to be used as evidence, which raises the possibility of coercion and torture while an individual is being held.

CHANGE IN PROOF STANDARD UNCLEAR

The BSB also changes the standard of proof for conviction from "beyond a reasonable doubt" to "innocent until proven guilty". but the bill makes no mention of this change or provides any further explanation.

IMPORTANT SECTION ALONG WITH ITS LANDMARK CASES

Section 11 - The case **Dudhnath Pandey v. State of U.P. AIR 1981 SCR (2) 771 -** Plea of alibi

Section 27 - In **Deoman Upadhyay v. State of U.P. AIR 1960 All 1, 1960 CriLJ 1** Sec. 27 of the Act was held to be constitutionally valid.

Section 32 - It was held that "A dying declaration may be made by signs when the injured person is unable to speak" - **R v. Abdullah (1885) ILR 7 All 385**

Section 115 - The principle of estoppel clearly framed in - **Pickard v. Sears 112 E.R. 179**

THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

OBJECTIVE OF THE GOVERNMENT BEHIND BRINGING THESE LAWS

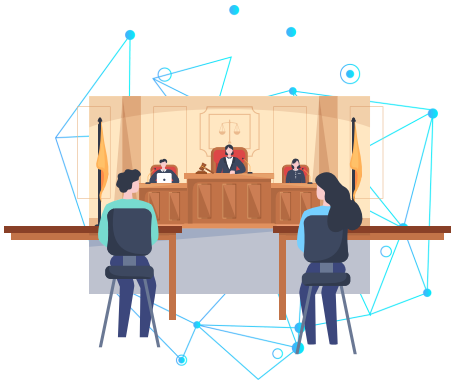
The introduction of the Bharatiya Nagarik Suraksha Sanhita (BNSS) Bill in India reflects a significant shift in the criminal justice system towards a more citizen-centric and technologically advanced approach. Here are key points highlighting the provisions and objectives of the BNSS Bill:

1. REPLACING OUTDATED LAWS:

The BNSS Bill is introduced to replace outdated laws that prioritize punishment over justice, signaling a commitment to modernize the legal framework.

2. PROTECTING CITIZEN'S RIGHTS:

The primary objective of the BNSS Bill is to protect the rights of citizens within the criminal justice system.



3. USE OF TECHNOLOGY IN TRIALS:

The bill promotes the use of technology in the criminal justice system, including conducting trials through video conferencing. This enhances efficiency and accessibility in legal proceedings.

4. ATTACHMENT OF PROPERTY:

The bill empowers authorities to attach the property of proclaimed offenders. This provision is aimed at preventing individuals from evading the law by disposing of their assets.

"Justice should not only be done but should manifestly and undoubtedly be seen to be done." –
Hon'ble Mr. Justice (Rtd.) P. N. Bhagwati, Former Chief Justice of India

5. NO NEED FOR SANCTIONS:

In cases of sexual offences and trafficking, the BNSS Bill eliminates the requirement for government officials to obtain sanctions, streamlining the legal process for victims.

6. USE OF HANDCUFFS:

Handcuffs can be used in specific circumstances, such as when apprehending serious criminals or individuals who have escaped from custody. This provision balances security concerns with human rights considerations.

7. TECHNOLOGY IN INVESTIGATIONS:

The bill encourages the use of technology and forensic sciences in the investigation of crimes. This can enhance the quality of evidence and improve the accuracy of investigations.

8. DIGITAL FIRST INFORMATION REPORTS (FIR):

The BNSS Bill takes a digital-first approach to filing FIRs and informing victims about the status of their cases. This ensures transparency and timely communication with citizens.

9. VIDEO CONFERENCING FOR TRIALS:

Trials are supported through video conferencing, which reduces the need for physical court appearances and makes legal proceedings more accessible.

10. ZERO FIR:

The bill allows citizens to file FIRs at any police station, irrespective of jurisdiction limits. It mandates that such FIRs must be forwarded to the appropriate police station within 15 days, ensuring that crimes are reported and acted upon promptly.

Overall, the BNSS Bill aims to bring about a more efficient, transparent, and citizen-friendly criminal justice system in India. It addresses various aspects of the legal process, from the use of technology to protect citizens' rights and expedite the resolution of cases to the elimination of bureaucratic hurdles in certain types of criminal cases.

CHANGE IN APPROACH

1. **REPEAL OF OUTDATED LAWS:**

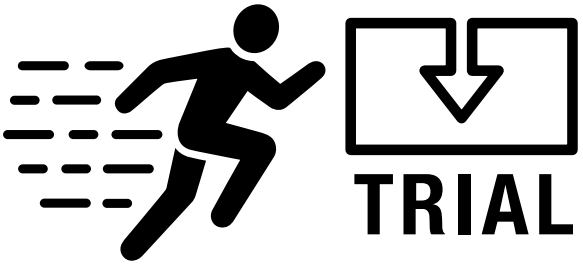
On the occasion of India's 76th independence anniversary, Prime Minister Narendra Modi announced the repeal of over 1,500 antiquated laws, signaling a move away from India's colonial past.Prime Minister Modi emphasized the need to create contemporary laws during the "Azadi Ka Amrit Kaal" and abolish laws that have been in place since the colonial era. The Central government proposed amendments to replace key criminal laws, including the Indian Penal Code (IPC), the Code of Criminal Procedure (CrPC), and the Indian Evidence Act, with new legislation. The three new bills, namely the Bharatiya Nyaya Sanhita, Bharatiya Nagarik Suraksha Sanhita, and Bharatiya Sakshya Bill, are set to replace the IPC, CrPC, and Evidence Act, respectively, in 2023.

2. PREVENTING POTICAL USE OF PUNISHMENT WAIVERS:

The BNSS Bill aims to prevent governments from politically manipulating punishment waivers. This implies a commitment to ensuring justice is not influenced by political considerations.

3. SPEEDY TRIALS:

One of the key objectives is to ensure the speedy disposal of criminal cases. This is essential to prevent undue delays and ensure that justice is delivered promptly.



4. FOCUS ON FORENSIC SCIENCE:

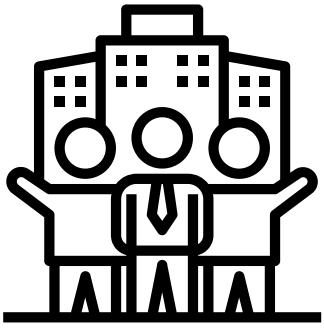
The government intends to use forensic science to increase conviction rates in criminal cases, with the goal of achieving a 90 percent conviction rate.

These legislative changes reflect a significant effort to modernize India's legal framework and align it with contemporary values and societal needs while addressing concerns related to justice and governance.

ARE THE LOOPHOLES COVERED

1. **Clause 482(2) Amendment Error:**

In Clause 482(2) of the BNSS, there exists an error where the previous provision allowed additional bail conditions for those accused under three specific IPC chapters. The amended provision, however, incorrectly deleted "Indian Penal Code" and replaced it with an inaccurate title. This error is particularly perplexing as the BNSS primarily pertains to procedural matters. Furthermore, the amended provision does not address offenses against the state and crimes involving women and children adequately.



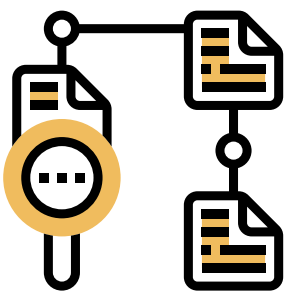
2. Definition of 'Corporation':

The definition of 'corporation' in the BNSS requires an update to include newer definitions from legislation like the Companies Act, 2013. Critics have raised concerns regarding Clause 262 of the BNSS, which permits an accused to apply for discharge within 60 days of the framing of charges, which appears to contradict established legal principles.

Clarity is essential in this context, and consideration of alternative triggers, such as the filing of a charge sheet or police report, may be necessary. Additionally, Clause 250 of the BNSS needs better clarification concerning discharge before formal charges are framed.

3. Plea Bargaining Timing:

An inadvertent error exists in either Clause 290 of the BNSS or Section 265B of the CrPC. These sections stipulate that an application for plea bargaining must be made within 30 days of the 'framing of charges.' However, it is argued that the application for plea bargaining should ideally be allowed before charges are formally framed. This interpretation was affirmed by the Hon'ble Delhi High Court in 2019 in the case of **Gaurav Aggarwal v. State.**



4. Consolidation of Procedural Safeguards:

While enhancing procedural safeguards for women against arrest, BNSS Clauses 43(5) and the proviso under 43(1), which correspond to CrPC Section 46(4) and proviso under 46(1), could have been merged for streamlined application and interpretation. These were originally introduced separately in the CrPC at different times (2005 and 2009, respectively). However, this consolidation opportunity was not utilized in the BNSS in 2023.

5. Inconsistent Use of Terminology:
Despite replacing all references to the term "code" in the Criminal Procedure Code (CrPC) with "Sanhita" in the Bharat Netaji Subhas Bose Shiksha Sansthan (BNSS), the term "code" reappears in a crucial new addition to BNSS, specifically Clause 532.

6. **Typographical Error in Clause 187(5):**
In the new addition to Clause 187(5) of the BNSS, corresponding to Section 167(2) of the CrPC, an error is present where the word 'Policy' is erroneously used instead of 'Police', resulting in the incorrect term 'Policy custody' instead of 'Police custody.'

7. **Summary Trial Amendment Complexity**:
Amendments allowing magistrates to conduct summary trials for cases carrying a sentence of less than three years could be simplified. It would be more coherent to amend the definition of 'warrant-case' to encompass only offences with punishments exceeding three years, avoiding potential confusion for magistrates handling cases with sentences between two and three years.

PARAMETERS

SPEEDY JUSTICE DELIVERY

FREE & FAIR TRIAL

ELECTRONIC/DIGITAL ALTERNATIVES

1. SPEEDY JUSTICE DELIVERY

Introduction of Timelines: The inclusion of specific timeframes in various clauses of the Bharatiya Nagarik Suraksha Sanhita (BNSS) and Bharatiya Sakshya Bill (BSS) is a positive step to ensure timely justice delivery. For example, the requirement to send records obtained during a search to the relevant magistrate within 48 hours (Clause 185(5) of BNSS) enhances efficiency.

Provision for Removal of Nuisance: The introduction of a proviso to Clause 157 of BNSS, stipulating that proceedings for 'Conditional order for removal of nuisance' must be completed within 90 days, aligns with the objective of swift resolution.

Fortnightly Reporting: Mandating the fortnightly reporting of non-cognizable offenses to the relevant authority (Clause 174 of BNSS) ensures regular updates on cases.

Medical Examination: The requirement to complete medical examinations of rape victims within seven days (Clause 184(6) of BNSS) prioritizes victim well-being.

2. FREE AND FAIR TRIAL

Enhanced Accountability: Provisions requiring police to provide updates on complaints within 90 days promote transparency (Clause 155 of BNSS).

Video-Recording of Statements: The mandatory video-recording of statements for survivors of sexual violence (Clause 156 of BNSS) prevents coercion and ensures a fair trial.

In Absentia Trials: Allowing courts to try and sentence absconding criminals in absentia (Clause 164 of BNSS) discourages fugitives and maintains accountability.

Use of Electronic Records: Magistrates' ability to take cognizance of offenses based on electronic records (Clause 180 of BNSS) facilitates evidence collection and verification.

3. ELECTRONIC / DIGITAL ALTERNATIVES

Embracing Digital Processes: The inclusion of Clause 532 in BNSS allows for electronic processes in trials, inquiries, and proceedings, improving efficiency and accessibility.

Digital Summons and Notices: Amendments enabling digital service of summons (Clause 64(2) proviso of BNSS) and notices (Clause 153 of BNSS) enhance convenience and effectiveness.

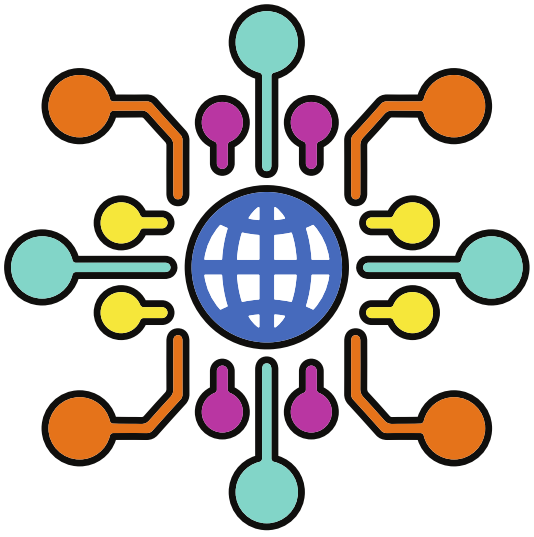
Electronic Evidence Recording: The recording of evidence, examinations, and issuance of summons and warrants through electronic means (Clause 532 of BNSS) aligns with the Digital India initiative.

Electronic FIR Registration: Legalizing FIR registration via electronic communication (Clause 173(1) clause (ii) of BNSS) enhances accessibility and efficiency.

Maintenance of Electronic Records: The requirement to maintain electronic records for perishable property during trial (Clause 499 of BNSS) ensures data integrity.

These parameters collectively contribute to the assessment of the quality and effectiveness of the BNSS and BSS legislations in promoting speedy justice delivery, ensuring free and fair trials, and embracing digital alternatives to enhance the efficiency and transparency of the criminal justice system.

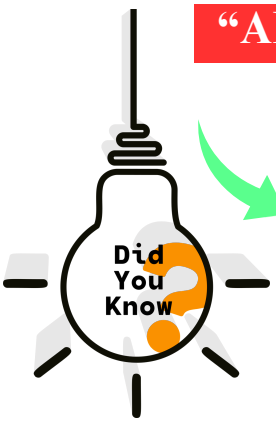
> "Digital transformation is an arduous journey with the long jump and it takes time and a real commitment to getter the higher level of digital maturity."
> — Pearl Zhu,



WHAT CHANGES - THEN VS. NOW

ARREST

SECTION	THE CODE OF CRIMINAL PROCEDURE,1973	CLAUSE	THE BHARATIYA NAGARIK SURAKSHA SANHITA,2023
41	When Police may arrest without warrant	35	When policemay arrest without warrant.
46	Arrest how made	43	Arrest how made
436	In what cases bail to be taken	480	In what cases bail to be taken
57	Person arrested not to be detained for more than 24 hours	58	Person arrested not to be detained for more than 24 hours



"ARRESTED INDIVIDUALS ALSO POSSESS RIGHTS"

In which case rights of arrested person been enumerated by the Supreme Court?

"D.K. Basu v. State of West Bengal"

1. *Right to know the grounds of Arrest.*
2. *Right to be informed of the provisions of Bail*
3. *Right to be taken to Magistrate without delay*
4. *Right to consult Legal Practitioner*
5. *Right to free legal aid*

SEARCH & SEIZURE

SECTION	THE CODE OF CRIMINAL PROCEDURE, 1973	CLAUSE	THE BHARATIYA NAGARIK SURAKSHA SANHITA,2023
95	Power to declare certain publications forefieted & to issue search warrant	98	Power to declare certain publications forefieted & to issue search warrant
161	Examination of witnesses by police.	180	Examination of witnesses by police.
457(1)	Procedure by police upon seizure of property.	505	Procedure by police upon seizure of property.

Q. Which of the following offences under the Indian Penal Code are covered under Section 95 of CrPC?

Section 153A and Section 153B of IPC strive to punish those who spread any form of religious enmity under the umbrella of the right to freedom of speech and expression.

Q. A refusal to answer questions put to a witness under Sec. 161 of the Cr.P.C. is an offence under :-

Under Section 179 of IPC

CUSTODY AND BAIL

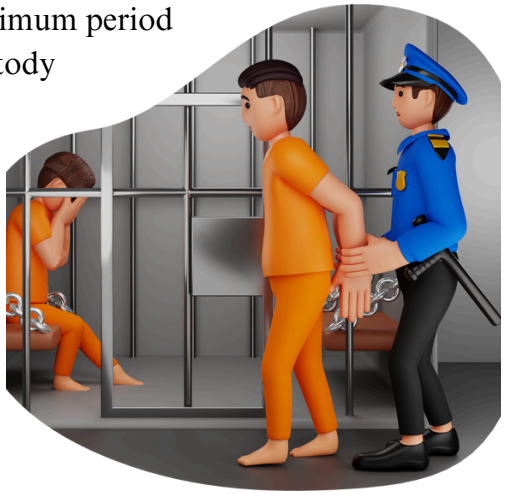
SECTION	THE CODE OF CRIMINAL PROCEDURE,1973	CLAUSE	THE BHARATIYA NAGARIK SURAKSHA SANHITA,2023
167(2)	Procedure when investigation cannot be completed in twenty-four hours.	187	Procedure when investigation cannot be completed in twenty-four hours.
446(A)	Cancellation of bond and bail bond.	494	Cancellation of bond and bail bond.
441	Bond of accused and sureties.	487	Bond of accused and sureties.
436	In what cases bail to be taken	480	In what cases bail to be taken

Q. Under Criminal Procedure Code to what maximum period an accused can be ordered to be kept in police custody by the Magistrate?

- 15 days

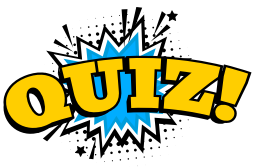
Q. “The bail is rule, jail is exception". This rule is laid down by the Supreme Court in?

- Moti Ram v. State of M.P.



TRIAL

SECTION	THE CODE OF CRIMINAL PROCEDURE, 1973	CLAUSE	THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023
436(A)	Maximum period for which an undertrial prisoner can be detained.	481	Maximum period for which an undertrial prisoner can be detained.
309	Power to postpone or adjourn proceedings.	346	Power to postpone or adjourn proceedings.
276	Record in trial before Court of Session.		



Q. If rape has been committed on a girl under twelve years of age, within which period inquiry or trial shall be completed after filing of charge sheet?

(a) 115 days
(b) 15 days ✓
(c) Both (a) and (b)
(d) Either (a) or (b)

Q. In a bailable offence, the bail is granted as a matter of right?

(a) by the police officer (b) by the court
(c) Both (a) and (b) ✓ (d) Either (a) or (b)

MERCY PETITION

SECTION	THE CODE OF CRIMINAL PROCEDURE, 1973	CLAUSE	THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023
437(1)	When bail may be taken in case of non-bailable offence.	482	When bail may be taken in case of non-bailable offence.
433(A)	Restriction on powers of remission or commutation in certain cases.	476	Restriction on powers of remission or commutation in certain cases.
473	Extension of period of limitation in certain cases.	521	Extension of period of limitation in certain cases.

JUDGEMENT

SECTION	THE CODE OF CRIMINAL PROCEDURE, 1973	CLAUSE	THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023
353	Judgement	392	Judgement

PROS & CONS

The Bhartiya Nyaya Suraksha Sanhita, comes with both advantages and disadvantages. Some pros & cons are discussed below :-

PROS

EMPOWER THE CITIZEN:
The reform will empower the citizens, by allowing them to register a police complaint in any police station, regardless of the location where the crime took place. The reform will also provide for effective protection of the constitutional rights of citizens, such as right to life, liberty, dignity, privacy, and fair trial

INCREASE USE OF TECHNOLOGY:
The reform will increase the use of electronic evidence and forensics during investigation, prosecution, and adjudication.

GENDER NEUTRAL:
The reform will make some of the sexual offenses gender neutral, by including men and transgenders as potential victims and offenders, in addition to women

MODERNISE AND SIMPLIFY:
The reform needs to modernize and simplify the criminal laws, which are outdated and complex. The reform will make the laws more in tune with the Indian spirit and ethos, and reflect the changing nature of crime, society, and technology.

CONS

POTENTIAL FOR MISUSE:
The increased use of technology, while beneficial in many ways, can also open avenues for manipulation and misuse. The admissibility of digital evidence might inadvertently allow fabricated or tampered evidence to be presented, raising questions about the reliability and authenticity of such records.

PRIVACY CONCERNS:
The greater emphasis on electronic communication and digital records could potentially infringe upon individuals' privacy rights. The collection and storage of electronic evidence raise concerns about data security and the potential for unauthorized access or breaches.

SUMMARY TRIALS AND FAIRNESS:

While summary trials are meant to expedite proceedings, they might compromise the principles of a fair trial. The swift resolution of cases might not allow adequate time for gathering evidence, cross-examination, or presenting a comprehensive defense, potentially leading to unjust outcomes.

ZERO FIR IMPLEMENTATION CHALLENGES:

The provision of filing a 'Zero FIR' at any police station, although seemingly progressive, might pose practical challenges in terms of coordination between different police stations and determining the appropriate jurisdiction for investigation. The transfer of cases within 15 days might not always be feasible, causing delays and confusion.

LACK OF JUDICIAL OVERSIGHT:

The bill places considerable responsibility on law enforcement agencies to decide whether to arrest an individual or not. This might lead to situations where the threshold for arrests becomes arbitrary, potentially resulting in the violation of individual rights and liberties.

ABSENCE OF COMPREHENSIVE TORTURE PREVENTION:

The bill falls short in addressing comprehensive measures to prevent torture and custodial violence, which are significant concerns. The focus on speedy justice should not come at the expense of safeguarding the rights and dignity of individuals in custody.

SOME LANDMARK CASES

1. The direction to ensure that police officers do not arrest accused unnecessarily and magistrates do not authorise detentions casually were issued by the Supreme Court in the case of - "**Arnesh Kumar v. State of Bihar", AIR 2014 SC 2756**

2. The Supreme Court held it is the the duty of the police to register a First Information Report - "**Lalita Kumari v. State of U.P.", 2014 2 SCC 1**

3. Applicability of Section 125 Cr.P.C. to all, irrespective of their religion, it was held by the Supreme Court, in the case of - "**Mohd. Ahmed Khan V. Shah Bano Begum", AIR 1985 Scr (3) 844**

THE VIDHI GAZETTE

VIDHISHALA

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